

**LOCAL LAWS
OF
THE CITY OF NEW YORK
FOR THE YEAR 2026**

No. 33

By Council Member Sanchez (by request of the Mayor). Passed under a Message of Necessity from the Mayor.

A LOCAL LAW

To amend the administrative code of the city of New York, in relation to the enactment of the New York city existing building code, and to repeal chapter 1 of title 27 of such code comprising the 1968 building code

Be it as enacted by the Council as follows:

Section 1. Chapter 1 of title 27 of the administrative code of the city of New York is REPEALED.

§ 2. Title 28 of the administrative code of the city of New York is amended by adding a new chapter 12 to read as follows:

CHAPTER 12

THE NEW YORK CITY EXISTING BUILDING CODE

ARTICLE 1201

ENACTMENT AND UPDATE OF

THE NEW YORK CITY EXISTING BUILDING CODE

§ 28-1201.1 Update. No later than the third year after the effective date of this section and every third year thereafter, the commissioner shall submit to the city council proposed amendments that such commissioner determines should be made to this code to bring it up to date

APPENDIX D

MULTIPLE DWELLINGS

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CHAPTER D1

GENERAL

D101 Purpose. The purpose of this appendix is to supplement the *New York City Existing Building Code* by establishing certain minimum standards for the alteration, addition, repair, change of occupancy, and relocation of existing buildings that are multiple dwellings or are to be converted to multiple dwellings. These supplemental standards are in addition to all applicable requirements of Chapters 1 through 15.

D101.1 Multiple Dwelling Law (MDL). Except as provided in Section D104.3.1, the MDL remains applicable to multiple dwellings.

D101.1.1 Construction requirements of MDL. The provisions of this appendix are intended to be at least as stringent as the construction requirements of applicable provisions of the MDL.

D101.1.2 Administrative requirements of MDL. The provisions of this appendix are not intended to restate or recite the provisions of the MDL that do not relate to construction requirements.

D101.1.3 Use of parentheticals. The provisions identified in parentheses in this appendix are intended to direct the user to the analogous sections of the MDL for informational purposes only and are not intended to establish applicability of such sections in their entirety.

D102 Applicability of this appendix. This appendix applies to all existing multiple dwellings whenever erected or whenever converted, including prior code multiple dwellings and including multiple dwellings erected or converted after July 1, 2008. See Section D301 regarding the applicability of certain chapters of this appendix to the various multiple dwelling classifications.

COURT, INNER (MDL 4(32)). A court not extending to the street or rear yard.

COURT, OUTER (MDL 4(32)). A court extending to the street or rear yard.

CUBICLE (MDL 4(21)). A small, partially enclosed sleeping space with or without a window to the outer air within a living room in an existing lodging house.

CURB LEVEL (MDL 4(33)). The "curb level", for the purpose of measuring the height of any portion of a building, is the level of the curb at the center of the front of the building; except that where a building faces on more than 1 street, the curb level is the average of the levels of the curbs at the center of each front. Where no curb elevation has been established the average elevation of the final grade adjoining all exterior walls of a building, calculated from grade elevations taken at intervals of 10 feet (3048 mm) around the exterior walls of the building, shall be considered the curb level, unless the city engineer shall establish such curb level or its equivalent.

DWELLING (MDL 4(4)). See Chapter 2 of the *New York City Building Code*.

DWELLING UNIT. See Chapter 2 of the *New York City Building Code*.

FIRE ESCAPE (MDL 4(42)(c)). A "fire-escape" is a combination of outside balconies and stairs providing an unobstructed means of egress from rooms or spaces in a building.

FIRE-RETARDED (MDL 4(29)). As applied to a part or parts of a building, part or parts that are:

1. Previously protected against fire in accordance with Section E402 of Appendix E, and if altered thereafter, altered in accordance with Section D306.13; or
2. Protected against fire with materials of standard fire-resistive ratings of at least 1 hour.

FIREPROOF (MDL 4(26)). As applied to a part or parts of a fireproof or non-fireproof building, such part or parts are made of incombustible materials with standard fire-resistive ratings not less than those required for the corresponding part or parts of a fireproof multiple dwelling.

FIREPROOF MULTIPLE DWELLING (MDL 4(25)). A multiple dwelling in which the walls and other structural members are of incombustible materials or assemblies meeting all of the requirements of the building code and with standard fire-resistive ratings of not less than those set forth in Table D201(1).

**TABLE D201(1) FIRE-RESISTIVE RATINGS OF
FIREPROOF BUILDING ELEMENTS^a**

<u>Incombustible material or assembly</u>	<u>Multiple dwelling more than 100feet (30 480 mm) in height</u>	<u>Multiple dwelling 100 feet (30 480 mm) or less in height</u>
<u>Fire Walls</u>	<u>4 hours</u>	<u>4 hours</u>
<u>Party Walls</u>	<u>4 hours</u>	<u>4 hours</u>
<u>Piers</u>	<u>4 hours</u>	<u>4 hours</u>